

Mahelaqa v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 December 2023 · 2023:AHC:232795-DB · Writ - C No. 34961 of 2023 · **If pending, Clause 5.6 application to be decided in six weeks**

HEADNOTE

Writ seeking quashing of a bill dated 31 January 2022, and its preparation under Clause 5.6 of the U.P. Electricity Supply Code, 2005, disposed of without any opinion on the merits. If the consumer's Clause 5.6 application is pending, the competent authority shall consider and decide it in accordance with law, preferably within six weeks of production of a certified copy of the order.

FACTUAL SUMMARY

Mahelaqa, a consumer of Purvanchal Vidyut Vitran Nigam Ltd., was issued a bill dated 31 January 2022 by the Executive Engineer, Electricity Urban Distribution Division, Meohall, Prayagraj. She sought a writ to quash that bill and to have it prepared under Clause 5.6 of the U.P. Electricity Supply Code, 2005. The licensee objected that the challenge was barred by delay and laches. She replied that she had deposited a substantial sum and that her Clause 5.6 application remained undecided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

pending clause 5.6 application

HOLDING

Without expressing any opinion on the merits, and with counsel's consent, the writ is disposed of by directing that if the consumer's application under Clause 5.6 of the U.P. Electricity Supply Code, 2005 is pending, the competent authority shall consider and decide it in accordance with law, expeditiously and preferably within six weeks from production of a certified copy of the order. ¶ 5

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ The Court did not quash the bill or construe Clause 5.6. It left the dispute to the consumer's already invoked Clause 5.6 application and, if that application was still pending, directed the authority to consider and decide it in accordance with law within six weeks. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL DATED 31 JANUARY 2022 IS LIABLE TO BE QUASHED OR RECAST UNDER CLAUSE 5.6

The Court expressed no opinion on the merits. ¶ 5

NOT DECIDED — WHETHER DELAY AND LACHES BAR A CHALLENGE TO THE BILL

The licensee raised the objection. The writ was disposed of by consent without a ruling on it. ¶ 3-5